Counterexamples to Lord's Dispositional Account of Proper Basing

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Abstract: Errol Lord has recently argued that there are counterexamples to the standard view of what it is to act or believe ("φ") for a normative reason. In particular, the standard view incorrectly predicts that an agent φs for a normative reason in cases where, intuitively, they are motivated by the wrong aspect of that reason. I agree that these cases pose a genuine problem for the standard view. However, Lord has also proposed a solution: when one φs for a normative reason, they manifest a certain sort of disposition. I argue that his solution is also vulnerable to counterexample: manifesting one of Lord's proposed dispositions is neither necessary nor sufficient to φ for a normative reason. I conclude that we should reject Lord's solution.

1. Composite

Consider how the count-noun "reason" is used in the following sentences:

(1) That $9.76 was the correct amount of change to give (*r*) was the reason for which Gerald gave his customer exactly $9.76 in change (φ).

(2) That $9.76 was the correct amount of change to give (*r*) was a reason for Gerald to have given his customer exactly $9.76 in change (φ).

The sense of "reason" in (1) is often called *motivational*. In (1), *r* figures centrally into a certain kind of psychological explanation of why Gerald φ-ed. The sense of "reason" in (2) is often called *normative*. The phrasing of (2) implies that some counting-in-favor-of relation obtains between *r* and φ-ing. Here's a widespread assumption: if both (1) and (2) are true (if the reason that Gerald is motivated by *is* a normative reason), then he can accurately be described as φ-ing for a normative reason (Armstrong 1973; Swain 1981, 1988; Audi 1993; Dancy 2000; Schossler 2012). Errol Lord formalizes this assumption as follows:

> **Composite:** What it is for *A* to φ for a normative reason *r* is for *r* to be *A*'s motivating reason for φ-ing and for *r* to be a normative reason to φ. (Lord 2018: 131)

In his recent monograph, Lord argues that Composite is vulnerable to counterexample. Suppose Gerald from (1) and (2) is a *prudent grocer*. Gerald gives the correct change to his customer not

because doing so is fair, but because grocers who do so tend to be the more profitable. Lord writes:

> Composite…predicts that Gerald acts for a normative [(specifically, a moral)] reason. This is because his motivating reason for action happens to be a normative reason for action. The problem, though, is that it just seems like an accident that this is true. In worlds where Gerald has different views about what maximizes profit, he doesn't provide correct change. This is so even though in (some of) those worlds giving correct change is still the fair thing to do. Thus, the Composite Account cannot distinguish between cases of genuine achievement and cases of accidental alignment between one's motivating reasons and normative reasons. (Lord 2018: 168)

I agree with Lord that we should abandon Composite for a definition of "φ-ing for a normative reason" that rules out this sort of accidental alignment. A better definition would respect the following condition:

> **Normative:** *A* φs for a normative reason *r* just in case *A* φs *in virtue of* the fact that *r* is a normative reason to φ. (Lord 2018: 135, emphasis mine)

However, if we accept Normative, another question arises. When does *A* φ "in virtue of" the fact that *r* is a normative reason to φ? Here is Lord's answer:

> **Normative–Fleshed Out:** *A* φs in virtue of the fact that *r* is a normative reason to φ just in case *A*'s φ-ing is produced or sustained by *r* (in the ways specified by Normative-Sustaining and Normative-Production). (Lord 2018: 139)
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> > ***Normative-Sustaining***: *A* φs for a normative reason *r* if *A* is disposed to revise their φ-ing if *r* ceases to be a normative reason to φ. (Lord 2018: 138)
> >
> > ***Normative-Production***: *A* φs for a normative reason *r* if *A*'s φ-ing is the manifestation of a disposition to φ when the fact that constitutes *r* is a normative reason to φ. (Lord 2018: 139)

On Lord's view, satisfying Normative-Fleshed Out is necessary and sufficient to φ for a normative reason. How does it fix Composite? Let's return to prudent grocer Gerald. Suppose, in

a nearby possible world, customers are less scrupulous. They do not reliably notice when they are shortchanged. In such a world, giving the correct change would still be the fair thing to do, but, because it wouldn't be reliably noticed by one's customers (and therefore wouldn't reliably affect one's customer base), it wouldn't be the profitable thing to do. Gerald does not give the correct change in this world. Let's take this fact to reveal that Gerald is not *disposed* to give the correct change when it is the fair thing to do. Normative-Production then correctly predicts Gerald does not act for a moral reason. Gerald instead acts for a prudential reason which, in the actual world, happens to be a moral reason.

Normative-Fleshed Out seems like a tidy solution to the "accidental alignment" problem with Composite. Unfortunately, I will argue that, like Composite, it is vulnerable to counterexample. In §2, I offer a case where Normative-Production's antecedent is true and its consequent false. This is a straightforward counterexample to the claim that satisfying Normative-Production is sufficient to φ for a normative reason. Next, in §3, I offer a case where both of the above conditionals' antecedents (that of Normative-Sustaining and Normative-Production) are false and their consequents true. This is a straightforward counterexample to the claim that satisfying at least one of these two conditionals is necessary to φ for a normative reason.

I conclude in §4 with brief remarks on the scope of my argument. Notably, even though I believe the lesson from §2 and §3 is that we should reject Normative-Fleshed Out, my argument leaves much of Lord's broader theoretical apparatus intact.

2. Is Satisfying Normative-Production Sufficient?

Normative-Production is a material conditional, so a case where an agent manifests the requisite disposition (the antecedent is true), but does not φ for a normative reason (the consequent is false), will suffice to reject it. Here is one such case:

> *Careful Driver:* Cam used to be a reckless driver. This changed last year when he got into an awful accident. Since then, he's become a much more careful driver. He is more careful now, primarily, because he's afraid of being injured and because he's afraid of having to waste more money (on speeding tickets, higher insurance premiums, car repairs, etc.). When Cam drives to work, he drives exactly 60 miles per hour (φ) because 60 miles per hour is the speed limit (*r*).

In Careful Driver, that 60 miles per hour (mph) is the speed limit is a moral reason for Cam to drive 60 mph. Following the rules of the road makes his fellow motorists safer. That 60 mph is the speed limit is also a prudential reason to drive 60 mph. Following the rules of the road makes him safer (and minimizes his financial burdens). Fortunately, it's constitutive of good road safety practices that they both make oneself and one's fellow motorists safer (a bad automobile accident harms oneself and at least one stranger!). Because of this constitutive connection, Cam has the requisite disposition for Normative-Production in Careful Driver: he is disposed to φ ("drive 60 mph") when the fact that constitutes *r* ("the speed limit is 60 mph") is moral reason to φ. But does Cam φ for a moral reason? *Ex hypothesi*, the answer is "no"—Cam does not care about the other people on the road. He is interested in driving the speed limit because it makes him safer (and wealthier). Cam φs for a prudential reason which happens to be a moral reason. But, per Normative-Production, Cam manifests the requisite disposition when he φs, so he φs for a moral reason. This is the wrong result.

Notice the key difference between Careful Driver and Gerald's case from §1. In nearby counterfactuals where the fact that constitutes *r* is no longer a prudential reason but remains a moral reason, Gerald does not φ. Gerald is not disposed to φ *whenever* the fact that constitutes *r* is a moral reason to φ. Whereas, for Cam, there are no nearby possible worlds where the fact that constitutes *r* is not both a prudential reason and a moral reason. For Normative-Production's intuitive appeal in cases like Gerald's to generalize, I posit that an implausible principle of metaphysical modality must hold:

> **Type Fragility***:* Each reason *r* for which, in some possible world, *r* is of both normative types t_1 and t_2, there exists another nearby possible world in which *r* is of type t_1 but not t_2, or of type t_2 but not t_1.

What do I mean by "normative type"? Contemporary philosophers distinguish the ways reasons can count in favor of an act or attitude with modifiers like "moral", "epistemic", "prudential", etc. In this context, it is convenient to have a noun phrase—"normative type"—which picks out whatever these modifiers are picking out. To say that a reason *r* is of the *moral* and *prudential* types is just to say that *r* is both a moral reason and a prudential reason to φ, or that *r* counts in favor of φ-ing on both moral and prudential grounds. In Gerald's case, *r* is a reason with two normative types. That $9.76 was the correct amount of change (*r*) to give is both a moral and a

prudential reason for Gerald to give $9.76 in change (φ). In another possible world, giving exact change would still be fair, but it would not maximize profit. In such a world, *r* is merely a moral reason to φ. Because *r* does not have the same typing in all possible worlds, we might describe *r*'s typing as, to some extent, *modally fragile*.

If my interpretation of Careful Driver is correct, Type Fragility is false. The typing of at least some of our reasons is *modally robust*. In cases where an agent's reason's typing is modally robust, Normative-Production will yield "false-positives". It will predict that the agent φs for a certain type of normative reason when, intuitively, they do not.[1]

3. Is Satisfying Either Normative-Production or Normative-Sustaining Necessary?

Is Normative-Production nevertheless necessary to φ for a normative reason? Not quite—per Normative-Fleshed Out, satisfying *either* Normative-Production or Normative-Sustaining is necessary. This section argues that this further claim is also mistaken. The case that will guide our discussion is inspired by Kelly (2011):

> It is natural to assume that if someone's commitment to a view is dogmatic, then his belief is unreasonable. However, I think that this natural assumption is mistaken. Indeed, I'm inclined to think that even perfect dogmatism is compatible with reasonable believing. For example, I believe that my mother loved me when I was a young child, and I have a great deal of evidence that she did. Perhaps it would be so traumatic for me to abandon this belief that I would retain it no matter what the state of available evidence. (If the evidence available to me which bears on the question started to become unfavorable, certain psychological mechanisms would be triggered which would prevent me from responding to that evidence in the appropriate way.) Even if that's so, given the actual state of my evidence, my belief that my mother loved me is perfectly reasonable. Thus, the fact that one is dogmatically committed to a belief does not entail that one's belief is unreasonable. (Kelly 2011: 109)

[1] *Objection*: The typing of Cam's reason *is* modally fragile. There are possible worlds where Cam is safe from (physical, social, financial, etc.) harm while driving, while others are not. In these worlds, *r* is a moral reason but not a prudential reason to φ, and so Cam does not φ. Reply: If there are possible worlds of this sort, they seem remarkably distant. And remarkably distant worlds do not usually factor into our assessments of whether objects or agents have particular dispositions. For example, a glass may be disposed to shatter when dropped even if, in some distant world, every surface is so soft that dropped glasses never shatter. Likewise, Cam displays a reasonably modally robust tendency to drive 60 mph when "60 mph is the speed limit" is a moral reason to drive 60 mph. From my perspective, this tendency qualifies as the requisite disposition.

For ease of exposition, I'll refer to Kelly's case as "Loving Mother" and call its protagonist "Tom". In Loving Mother, Tom believes his mother loves him (φ) because (say) he has fond memories of her affection (*r*). As a further stipulation, suppose Tom is reminded of these memories (and so explicitly adopts them as his reason for believing) *after* adopting his belief. I think *r*, on a plausible reading of this case, bears the right kind of relation to Tom's belief. Not only is *r* the reason *for which* Tom believes his mother loved him, Tom believes his mother loved him *in virtue of* the fact that *r* is a normative reason. Contra the quoted passage, we can even leave it as an open question as to whether Tom's belief is reasonable or rational. Even unreasonable or irrational beliefs are sometimes responses to at least one normative reason.

What more can we say in defense of the intuition that Tom φs in virtue of the fact that *r* is a normative reason to φ? Given that, per the quoted passage, compromising "psychological mechanisms" are not triggered in good evidential conditions, we can ascribe quite a lot of epistemic sophistication to Tom. Perhaps Tom understands precisely how *r* counts in favor of his belief. He may even cite the normatively relevant aspect of *r* as his reason for belief. If challenged, he might say: "People who have fond memories of an affectionate mother are *more likely* to have actually been loved by their mother." Here, Tom sounds exactly like the sort of person who holds his belief in virtue of the fact that *r* is a good evidential reason for that belief.

So, in Loving Mother, let's assume that Tom φs for normative reason *r*. According to Lord, Tom's φ-ing must be produced or sustained by *r*. Is it? Well, Tom would hold onto his belief even if *r* ceased to be a normative reason (say, if *r* were defeated). In nearby possible worlds where Tom's evidential situation is much less favorable, some underlying trauma response would be triggered and prevent him from abandoning his belief. So Tom's φ-ing is not sustained by *r*. Next, since Tom already held the belief and only later acquired *r*, Tom's belief is not produced by *r*. Tom's belief is produced by something else—something prior to his acquisition of this particular reason. Therefore, although Tom φs for a normative reason, he fails to satisfy either Normative-Production or Normative-Sustaining. If this is correct, then satisfying at least one of these conditionals cannot be necessary to φ for a normative reason.

Objection: Tom satisfies Normative-Production, as defined. Tom's φ-ing may not be *produced* by *r*, but Tom is disposed to φ when the fact that constitutes *r* is a normative reason to φ. *Reply*: This objection, if true, creates an uncomfortable tension with Lord's exposition. Consider his introduction to *sustaining causation*:

> …my belief that Arzak is closed is sustained by the fact that Gambara is closed when I learn that Gambara is closed *after* I form the belief that Arzak is closed. Similarly, my baking of the pie comes to be sustained by the fact that my friend is coming for a surprise visit *after* I start baking the pie for another reason (e.g., to have something special for dessert). (Lord 2018: 136)[2]

Sustaining causation plays a distinctive role in Lord's account. Given that he analyzes "φ-ing for a normative reason *r*" to be a causal relation between an agent's φ-ing and *r*, he must answer a tricky metaphysical question that arises when "φ" refers to a temporally-extended mental state (e.g., believe, desire, intend). Take *believing* as a sample temporally-extended reason-sensitive mental state. If reason *r* causes a belief at time t_1, in what sense does *r* continue to cause that belief at times t_2, t_3, and so on? Lord answers this question by positing a distinctive type of causal relation: sustaining causation. This is the sort of causation involved in keeping an arrow steady or a mind focused on a task, and is (purportedly) captured by Normative-Sustaining.

Loving Mother is a case where the agent in question—Tom—acquires his reason after forming his belief, but does not satisfy Normative-Sustaining. Insofar as Tom *does* satisfy Normative-Production, and this explains why Tom φs for a normative reason, there is some mismatch in Lord's account. This mismatch is that what Lord calls "production causation" (the causal relation involved when *r* produces *A*'s φ-ing) is not neatly captured by the conditional "Normative-Production", and likewise for what he calls "sustaining causation" (the causal relation involved when *r* sustains *A*'s φ-ing) and the conditional "Normative-Sustaining". To push this point a little further, here's a hypothesis: failures of Normative-Sustaining will (almost) always be successes of Normative-Production. If dogmatic believers like Tom fail to revise their belief when *r* ceases to be a reason for belief, this is likely because they "overshoot" (so-to-speak)—they are disposed to φ when *r is* a normative reason to φ, and also when *r isn't* a normative reason to φ.

If, for some agent *A*, Lord wants to claim that *A* doesn't φ for normative reason *r because* they aren't disposed to revise their φ-ing when *r* ceases to be normative reason, then he has underspecified Normative-Fleshed Out. A revised principle should further specify when each

[2] Arzak and Gambara are restaurants in Spain. The assumption here is that Gambara closes earlier or at the same time as Arzak. This is why learning "Gambara is closed" counts in favor of believing "Arzak is closed".

conditional applies. In the case of believing, Normative-Production applies when one adopts a *new* belief in virtue of (when their belief is *produced* by) some reason *r*, and Normative-Sustaining applies when one *continues* to believe in virtue of (when their belief is *sustained* by) *r*.[3] This would solve the abovementioned mismatch. But, as Loving Mother could no longer plausibly satisfy Normative-Production, this revision would reintroduce Loving Mother as a counterexample to Normative-Fleshed Out. Contra Lord, it would show that one can φ for a normative reason *r* even if their φ-ing is not produced or sustained by *r*.

4. Limitations

The upshot of my argument in §2 and §3, as I understand it, is that it shows satisfying Normative-Fleshed Out is neither necessary nor sufficient to φ for a normative reason.[4] How significant is this upshot?

Like all philosophers, Lord is more committed to some claims than others. He admits: "There is a good reason why I don't jump directly to my dispositional account. I think that Normative would be true even if the following dispositional account failed." (136, ftn. 14). Moreover, Normative is not even what Lord designates a "real definition" (cf. Rosen 2015) of φ-ing for a normative reason. A real definition is offered here:

> **Manifest:** What it is for *A* to φ for a normative reason *r* is for *A*'s φ-ing to be a manifestation of *A*'s knowledge about how to use *r* as a reason to φ. (Lord 2018: 139)

For Lord, locutions of the form "φ-ing for a normative reason *r*" refer to manifestations of know-how. How can we identify manifestations of know-how? When one's φ-ing is caused in the ways specified by Normative-Fleshed Out.

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[3] Perhaps the correct reading of Normative-Fleshed Out is one in which this further clarification is implicit. If so, the objection considered in §3 fails because it misreads Lord, not because it has created (as I write) a tension with his exposition.

[4] Two caveats. (i) This is not the only plausible view as to what the upshot of §2 and §3 is. Alternatively, we might think that Normative-Fleshed Out is correct, but the two associated conditionals are poor precisifications of production causation and sustaining causation. §2 gives us a counterexample to the claim that Normative-Production captures production causation, and §3 gives us a counterexample to the claim that Normative-Sustaining captures sustaining causation. (ii) I have not made any argument against Normative-Sustaining as a sufficient condition to φ for a normative reason. For all I say, Normative-Fleshed Out may still give us *one* sufficient condition.

My argument does not target Normative or Manifest. It targets how Lord *fleshes out* these claims—i.e., it targets Normative-Fleshed Out. If my argument succeeds, Lord may still have provided us with an interesting counterexample to the standard view of what it is to φ for a normative reason, and a path forward in Normative and Manifest.

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